

STATE LEGISLATURE

ARTICLES 168-212 AND THE — COMPOSITION, ELECTION, DURATION AND — PRESIDING OFFICERS, SESSIONS, QUORUM — PRIVILEGES, QUESTIONS, MOTIONS AND — ORDINARY, MONEY AND FINANCIAL — BUDGET, FUNDS, COMMITTEES AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure, the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE Pending user review active generation g2 repaired in place for answer-line and visual-boundary quality all prior artifacts unchanged

CORE BEFORE EXTRA prior artefacts unchanged exact same master drives poster and tiles

00

STAGE 00 ARTICLES 168-212 AND THE CHOICE BETWEEN ONE HOUSE AND TWO

ARTICLES 168-212 AND THE CHOICE BETWEEN ONE HOUSE AND ARTICLE 168 GOVERNOR + LEGISLATIVE ASSEMBLY IN EVERY STATE LEGISLATIVE COUNCIL ONLY IN A BICAMERAL STATE ARTICLE 169 CREATION ASSEMBLY SPECIAL RESOLUTION PARLIAMENT ORDINARY LAW

NO ARTICLE 368 AMENDMENT PROCEDURE.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 168
- Governor + Legislative Assembly in every State
- Legislative Council only in a bicameral State.

POWER / PROCEDURE

- ARTICLE 169 CREATION / ABOLITION
- Assembly special resolution → Parliament ordinary law → no Article 368 amendment procedure.
- Parliament is enabled, not legally compelled, by the State resolution.

CHECK / LIMIT

- CURRENT MAP six Council States: Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra, Karnataka.
- DESIGN VERDICT
- Assembly carries direct democratic confidence: Council supplies revision and continuity, but cannot become a co-equal veto chamber.

FEDERAL / RIGHTS IMPACT

- ARTICLE 169 CREATION / ABOLITION

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The November 2025 Article 143 opinion rejects rigid court-written timelines and deemed assent, but prolonged unexplained inaction remains amenable to limited judicial review and a direction to decide.

01

STAGE 01 COMPOSITION, ELECTION, DURATION AND MEMBERSHIP CONTROLS

COMPOSITION, ELECTION, DURATION AND MEMBERSHIP CONTROLS ASSEMBLY DIRECT ELECTION NORMAL FIVE-YEAR TERM MINIMUM AGE 25 DISSOLUTION POSSIBLE COUNCIL INDIRECT MIXED COMPOSITION UNDER ARTICLE 171 PERMANENT HOUSE

ONE-THIRD RETIRE EVERY TWO YEARS MINIMUM AGE 30

ASSEMBLY direct election

- COUNCIL indirect mixed composition under Article 171
- COUNCIL ELECTORAL STREAMS local authorities 1/3

normal five-year term

- permanent House
- graduates 1/12

minimum age 25

- one-third retire every two years minimum age 30
- teachers 1/12

dissolution possible.

- total strength normally not more than one-third of Assembly, minimum 40.
- Assembly members 1/3

CONSTITUTIONAL BASIS / ARTICLE

- ASSEMBLY direct election
- normal five-year term
- minimum age 25
- dissolution possible.

POWER / PROCEDURE

- COUNCIL indirect mixed composition under Article 171
- permanent House
- one-third retire every two years minimum age 30
- total strength normally not more than one-third of Assembly, minimum 40.

CHECK / LIMIT

- COUNCIL ELECTORAL STREAMS local authorities 1/3
- graduates 1/12
- teachers 1/12
- Assembly members 1/3

FEDERAL / RIGHTS IMPACT

- Governor nominates remainder for specified knowledge/experience.
- Article 191 disqualification → Article 192 Governor decision after ECI opinion
- Tenth Schedule questions follow the presiding-officer route.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Council strength cannot exceed one-third of the Assembly strength and cannot ordinarily be below 40.

02

STAGE 02 PRESIDING OFFICERS, SESSIONS, QUORUM AND VOTING

PRESIDING OFFICERS, SESSIONS, QUORUM AND VOTING ASSEMBLY SPEAKER/DEPUTY SPEAKER COUNCIL CHAIRMAN/DEPUTY CHAIRMAN. REMOVAL REQUIRES NOTICE AND THE CONSTITUTIONAL MAJORITY STATED FOR SESSION CHAIN GOVERNOR SUMMONS ADJOURNMENT SINE DIE

ASSEMBLY ALONE MAY BE DISSOLVED.

Assembly Speaker/Deputy Speaker

Council Chairman/Deputy Chairman.

removal requires notice and the constitutional majority stated for the House.

SESSION CHAIN

Governor summons — sitting — adjournment / adjournment sine die — prorogation

CONSTITUTIONAL BASIS / ARTICLE

- Assembly Speaker/Deputy Speaker
- Council Chairman/Deputy Chairman.
- removal requires notice and the constitutional majority stated for the House.

POWER / PROCEDURE

- SESSION CHAIN
- Governor summons — sitting — adjournment / adjournment sine die — prorogation
- Assembly alone may be dissolved.

CHECK / LIMIT

- No more than six months may intervene between sessions.
- QUORUM ten members or one-tenth of total membership, whichever is greater.
- VOTING members present and voting → presiding officer ordinarily no first vote

FEDERAL / RIGHTS IMPACT

- casting vote on equality; vacancies do not invalidate otherwise lawful proceedings.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A presiding officer does not preside over a motion for their own removal but may participate and vote in the first instance.

03

STAGE 03 PRIVILEGES, QUESTIONS, MOTIONS AND PROCEDURAL ACCOUNTABILITY

PRIVILEGES, QUESTIONS, MOTIONS AND PROCEDURAL ACCOUNTABILITY ARTICLE 194 PRIVILEGE FUNCTIONAL PROTECTION FOR SPEECH, VOTE AND SITA SOREN (2024) BRIBERY IS NOT PROTECTED MERELY BECAUSE IT RELATES TO JUDICIAL CONTROL RAJA RAM PAL (2007)

PRIVILEGE AND EXPULSION POWERS REMAIN REVIEWABLE FOR ILLEGALITY, UNCONSTITUTIONALITY ACCOUNTABILITY DEVICES QUESTIONS

ARTICLE 194 PRIVILEGE functional protection for speech, vote and legislative work; not a personal criminal

Sita Soren (2024) — bribery is not protected merely because it relates to a vote

JUDICIAL CONTROL

Raja Ram Pal (2007) — privilege and expulsion powers remain reviewable for illegality, unconstitutionality, mala

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 194 PRIVILEGE functional protection for speech, vote and legislative work; not a personal criminal licence.
- Sita Soren (2024) — bribery is not protected merely because it relates to a vote or speech.
- JUDICIAL CONTROL

POWER / PROCEDURE

- Raja Ram Pal (2007) — privilege and expulsion powers remain reviewable for illegality, unconstitutionality, mala fides or substantive
- procedural violation.
- ACCOUNTABILITY DEVICES questions

CHECK / LIMIT

- short-duration discussion
- calling attention
- adjournment motion no-confidence/censure

FEDERAL / RIGHTS IMPACT

- privilege motion
- cut motions.
- CORE DISTINCTION no-confidence tests ministry survival in the Assembly; Council cannot make or unmake the ministry.

MECHANISM / VERDICT — Sita Soren (2024) — bribery is not protected merely because it relates to a vote or speech.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Governor is a component of the legislature but not a House member and does not acquire Article 194 member privilege.

04

STAGE 04 ORDINARY, MONEY AND FINANCIAL BILLS ACROSS UNEQUAL HOUSES

ORDINARY, MONEY AND FINANCIAL BILLS ACROSS UNEQUAL HOUSES ORDINARY BILL IN BICAMERAL STATE EITHER HOUSE MAY ORIGINATE COUNCIL MAY DELAY FIRST PASSAGE UP TO THREE MONTHS ASSEMBLY REPASSES COUNCIL MAY DELAY UP TO ONE MONTH

ASSEMBLY ULTIMATELY PREVAILS; NO STATE JOINT SITTING. MONEY BILL ASSEMBLY ONLY + GOVERNOR'S RECOMMENDATION

CONSTITUTIONAL BASIS / ARTICLE

- ORDINARY BILL IN BICAMERAL STATE either House may originate. → Council may delay first passage up to three months
- Assembly repasses → Council may delay up to one month
- Assembly ultimately prevails; no State joint sitting.

POWER / PROCEDURE

- MONEY BILL
- Assembly only + Governor's recommendation → Speaker certificate
- Council has 14 days and recommendations only → Assembly may accept or reject.

CHECK / LIMIT

- FINANCIAL BILLS identify the constitutional category; not every Bill involving money is a Money Bill.
- ASSENT GATE
- Article 200 assent/withhold/return non-Money Bill/reserve

FEDERAL / RIGHTS IMPACT

- Article 201 presidential route for reserved Bills.

CONSTITUTIONAL BASIS / ARTICLE

- ORDINARY BILL IN BICAMERAL STATE either House may originate → Council may delay first passage up to three months
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- FINANCIAL BILLS identify the constitutional category; not every Bill involving money is a Money Bill.
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FEDERAL / RIGHTS IMPACT

- Article 201 presidential route for reserved Bills.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Permitting ministers and private members to introduce ordinary Bills broadens legislative initiative, but special financial and procedural rules still govern relevant measures.

05

STAGE 05 BUDGET, FUNDS, COMMITTEES AND EXECUTIVE SCRUTINY

BUDGET, FUNDS, COMMITTEES AND EXECUTIVE SCRUTINY ANNUAL FINANCIAL STATEMENT CHARGED EXPENDITURE DISCUSSED BUT NOT VOTED DEMANDS FOR GRANTS VOTED ONLY BY ASSEMBLY APPROPRIATION AUTHORISES WITHDRAWAL FROM CONSOLIDATED FUND

FINANCE BILL COMPLETES TAXATION CHANGES CONSOLIDATED FUND CONTINGENCY FUND PUBLIC ACCOUNT

ANNUAL FINANCIAL STATEMENT charged expenditure discussed but not voted

demands for grants voted only by Assembly

appropriation authorities withdrawal from Consolidated Fund

Finance Bill completes taxation changes.

Consolidated Fund

CONSTITUTIONAL BASIS / ARTICLE

- ANNUAL FINANCIAL STATEMENT charged expenditure discussed but not voted
- demands for grants voted only by Assembly
- appropriation authorities withdrawal from Consolidated Fund
- Finance Bill completes taxation changes.

POWER / PROCEDURE

- Consolidated Fund
- Contingency Fund
- Public Account; distinct custody and vote rules.
- COMMITTEE CHAIN

CHECK / LIMIT

- Public Accounts Committee → appropriation and audit
- Estimates Committee → economy and policy efficiency
- Public Undertakings Committee → State enterprise scrutiny
- Departmental/subject committees → detailed examination.

FEDERAL / RIGHTS IMPACT

- CONTROL TEST budget power matters only when members receive time, data, research and follow-up compliance.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Legislative committees deepen clause-level and financial scrutiny when plenary time is scarce, although their structures and effectiveness vary substantially across States.

06

STAGE 06 ANTI-DEFECTION AND THE ORDINANCE-LEGISLATURE INTERFACE

ANTI-DEFECTION AND THE ORDINANCE-LEGISLATURE INTERFACE TENTH SCHEDULE VOLUNTARY GIVING UP WHIP BREACH WITHOUT PERMISSION/CONDONATION INDEPENDENT JOINS PARTY NOMINATED MEMBER JOINS AFTER SIX MONTHS DISQUALIFICATION ROUTES.

SPEAKER/CHAIRMAN DECIDES, SUBJECT TO JUDICIAL REVIEW. KIHOTO HOLLOHAN (1992) REVIEW SURVIVES AFTER THE DECISION ON RECOGNISED GROUNDS.

TENTH SCHEDULE voluntary giving up

whip breach without permission/condonation

Independent joins party nominated member joins after six months — disqualification routes.

Speaker/Chairman decides, subject to judicial review.

CONSTITUTIONAL BASIS / ARTICLE

- TENTH SCHEDULE voluntary giving up
- whip breach without permission/condonation
- Independent joins party nominated member joins after six months — disqualification routes.

POWER / PROCEDURE

- Speaker/Chairman decides, subject to judicial review.
- Kihoto Hollohan (1992) → review survives after the decision on recognised grounds.
- Nabam Rebia (2016) decided several Governor/Speaker questions

CHECK / LIMIT

- its Speaker-removal issue was referred in Subhash Desai (2023) and remains unresolved.
- ARTICLE 213 INTERFACE ordinance is a temporary necessity bridge when the session condition is met
- it must return to legislative scrutiny and cannot become a parallel ordinary lawmaking cycle.

FEDERAL / RIGHTS IMPACT

- Speaker/Chairman decides, subject to judicial review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Tenth Schedule applies within State Houses through Speaker-led decisions subject to judicial review, while only the two-thirds merger defence survives the 91st Amendment.

07

STAGE 07 LEGISLATIVE COMPETENCE AND ARTICLE 212'S LIMITED SHIELD

LEGISLATIVE COMPETENCE AND ARTICLE 212'S LIMITED SHIELD COMPETENCE FIRST ARTICLE 246 + SEVENTH SCHEDULE + SPECIAL FIELDS PITH AND SUBSTANCE INCIDENTAL ENCROACHMENT REPUGNANCY WHERE THE CONCURRENT FIELD APPLIES.

ARTICLE 212 COURT DOES NOT INVALIDATE PROCEEDINGS MERELY FOR BUT SUBSTANTIVE ILLEGALITY, CONSTITUTIONAL VIOLATION AND JURISDICTIONAL ERROR REMAIN

CONSTITUTIONAL BASIS / ARTICLE

- COMPETENCE FIRST
- Article 246 + Seventh Schedule + special fields → pith and substance
- incidental encroachment → repugnancy where the Concurrent field applies.

POWER / PROCEDURE

- ARTICLE 212 court does not invalidate proceedings merely for procedural irregularity
- BUT substantive illegality, constitutional violation and jurisdictional error remain reviewable.
- ASSENT CURRENT CONTROL

CHECK / LIMIT

- State of Tamil Nadu v. Governor of Tamil Nadu (2025) used timelines/deemed assent on its facts.
- In re Assent, Withholding or Reservation of Bills (2025) is advisory and non-binding
- no rigid timelines or automatic deemed assent: prolonged unexplained inaction may be reviewed.

FEDERAL / RIGHTS IMPACT

- PRIVILEGE, SPEAKER CERTIFICATION AND DEFLECTION ARE NOT REVIEW-FREE ZONES.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Direct election plus confidence control makes the Assembly the democratic and political centre of State government.

08

STAGE 08 ASSEMBLY-COUNCIL COMPARISON, CURRENT REFORMS AND ANSWER SYNTHESIS

ASSEMBLY-COUNCIL COMPARISON, CURRENT REFORMS AND ANSWER SYNTHESIS ASSEMBLY COUNCIL DIRECT MANDATE INDIRECT MIXED REPRESENTATION CONFIDENCE AND MONEY BILL DOMINANCE RECOMMENDATIONS WITHIN 14 DAYS CURRENT CONTROLS

106TH AMENDMENT COMMENCED BUT AWAITS CENSUS-LINKED DELIMITATION FOR OPERATION. THE FAILED/WITHDRAWN 2026 BILLS ARE PROPOSALS, NOT LAW; CENSUS MAINS SPINE DEFINE CHAMBER DESIGN CITE ARTICLE

ASSEMBLY COUNCIL direct mandate indirect mixed representation confidence and grants revision and continuity may be

ordinary-Bill control maximum delaying power

Money Bill dominance recommendations within 14 days

CURRENT CONTROLS

106th Amendment commenced but awaits census-linked delimitation for operation.

CONSTITUTIONAL BASIS / ARTICLE

- ASSEMBLY COUNCIL direct mandate indirect mixed representation confidence and grants revision and continuity may be dissolved permanent final
- ordinary-Bill control maximum delaying power
- Money Bill dominance recommendations within 14 days

POWER / PROCEDURE

- CURRENT CONTROLS
- 106th Amendment commenced but awaits census-linked delimitation for operation.
- The failed/withdrawn 2026 Bills are proposals, not law; Census 2027 dates do not fix delimitation.

CHECK / LIMIT

- MAINS SPINE define chamber design — cite Article → compare power — evidence/problem
- representation/productivity reform → stronger committees and sitting calendars
- effective State legislatures as institutions of representative federalism.

FEDERAL / RIGHTS IMPACT

- CURRENT CONTROLS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Defeat on an amendment or Motion of Thanks may be politically serious, but confidence consequences depend on context and House practice.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT 28. WHY OPTIONAL BICAMERALISM DIFFERS FROM FEDERAL BICAMERALISM 29. THE DEMOCRATIC CASE AGAINST OCCUPATIONAL CONSTITUENCIES 30. PRESIDING OFFICER REFORM OPTIONS 31. MODEL ANSWER-WRITING METHOD

[ANALYSIS] RAJYA SABHA IS BUILT INTO THE UNION'S FEDERAL [ANALYSIS] COUNCIL ELECTORATES ARE FUNCTIONALLY HETEROGENEOUS RATHER THAN STATE-REPRESENTATIVE. [ANALYSIS] ITS WEAKNESS ON ORDINARY BILLS MEANS BICAMERALISM SUPPLIES

OPTIONAL DOCTRINE / CASE

- 28. Why optional bicameralism differs from federal bicameralism
- 29. The democratic case against occupational constituencies
- 30. Presiding officer reform options
- 31. Model answer-writing method

ADVANCED LIMIT

- [ANALYSIS] Rajya Sabha is built into the Union's federal architecture; a Council is created only when a State and Parliament choose it.
- [ANALYSIS] Council electorates are functionally heterogeneous rather than State-representative.
- [ANALYSIS] Its weakness on ordinary Bills means bicameralism supplies delay without final bargaining equality.
- [LIMIT] Weakness does not equal uselessness. Even delay may expose drafting flaws, enable public debate or force compromise.

COMPARATIVE NUANCE

- [ANALYSIS] Graduate and teacher constituencies were designed to draw specialised voices into legislation.
- [ANALYSIS] Expansion of higher education weakens the historical claim that graduates form a small expert class.
- [ANALYSIS] Unequal functional franchise can appear inconsistent with universal political equality even while constitutionally valid.
- [ANALYSIS] Reform options include updating eligibility, widening professional representation, strengthening local-body representation or redesigning nomination.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.